

Vernon's Texas Statutes and Codes Annotated

Occupations Code (Refs & Annos)

Title 12. Practices and Trades Related to Water, Health, and Safety (Refs & Annos)

Subtitle B. Practices Related to Health and Safety

Chapter 1958. Mold Assessors and Remediators (Refs & Annos)

Subchapter D. Practice by License Holder

V.T.C.A., Occupations Code § 1958.153

§ 1958.153. Notice of Project

Currentness

(a) Except as provided by Subsection (b), not later than the fifth day before the date on which a license holder starts mold remediation at a property, the license holder shall notify the department in a manner prescribed by the department about the project.

(b) In an emergency, notice to the department under Subsection (a) must be made not later than the next business day after the license holder identifies the emergency. For purposes of this subsection, an emergency exists if a delay in mold remediation services in response to a water damage occurrence would increase mold contamination.

(c) The commission shall adopt rules to implement this section, including rules describing the information that must be provided in the notice.

(d) The department shall develop a mechanism by which a license holder may notify the department of an emergency as required by Subsection (b).

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2015, 84th Leg., ch. 1 (S.B. 219), § 5.305, eff. April 2, 2015; Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.288, eff. Sept. 1, 2017; Acts 2017, 85th Leg., ch. 1105 (H.B. 4007), § 11.003, eff. Sept. 1, 2017.

V. T. C. A., Occupations Code § 1958.153, TX OCC § 1958.153

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.

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